What I would change in my ethical analysis, having completed the modules

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I wrote my professional email to DesignR before completing the Indigenous Professional Capability module. Having now completed it, the gap in that email is clear: it was better at explaining what the firm was doing wrong than at setting out how the work could proceed responsibly. The diagnosis was sound. The prescription was thin.

The email argued correctly that the firm's four safeguards — literature research, disclaimers, a donation program and rights-managed licensing — had all been decided without Indigenous participation, and that none of them substitutes for consent. What it then recommended, though, was closer to improving the product than to changing how the decision was made. I would now recommend pausing the product line until the relevant communities and representative organisations are involved in deciding whether it should proceed at all, and if so on what terms — with agreements covering cultural restrictions, benefit sharing, reuse, and what happens if consent is later withdrawn. Adding safeguards to a product that already exists is not the same as meaningful engagement, because the decision that mattered has already been taken.

The second thing I would change is how I handled the hardest part of the argument. I raised the problem of a model already trained on large public datasets, whose outputs others can alter and redistribute, and I treated it as a gap in my own understanding. Having done the module, I can see it is an unresolved problem in the field. Free, Prior and Informed Consent is clear as a principle and much less clear in application here: how a firm determines which communities an output draws on, how permissions are managed at that scale, and how consent withdrawn later is honoured across a product's whole life are open questions. Naming them as open, rather than hedging around them, would have made the email stronger.

The underlying shift is in what I think the work involves. I had been treating ethical data practice as a set of protections applied to data once it exists. The 5D and BADDR frameworks make the earlier questions the important ones: what gets collected, who decides what it is for, and how the results are interpreted.